

Court No. - 21

Case :- WRIT - C No. - 4467 of 2021

Petitioner :- M/S Dakini Health Foods And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Chandan Agarwal

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard Shri Mayank Kumar Agrawal, learned counsel for the petitioners and Shri Chandan Agarwal, learned counsel for the respondents.

By means of present writ petition, the petitioners are seeking a direction commanding the respondents to forthwith refund the excess amount of security deposited by the petitioners pursuant to reduction of load from 800KVA to 600 KVA in terms of Chapter-III Clause 1 and 8 of the note appended to the Cost Data Book dated 08.07.2019 read with Clause 4.20 of the U.P. Electricity Supply Code 2005 alongwith interest @ 18% per annum since April 2019 till its refund to secure the ends of justice.

Learned counsel for the petitioners submits that for running the small scale industry initially the electricity connection was obtained with sanctioned load of 800 KVA. Since there was reduction in production and 45 days average consumption of preceding one year also got reduced, therefore, the load was required to be reduced. In this direction, an application was moved, which was processed by the respondent and vide order dated 05.02.2020, the load was reduced to 600 KVA.

Learned counsel for the petitioners further submits that the security is sought to secure default in payment of regular bills and the provisions for security or additional security find place in the Cost Data Book dated 08.07.2019 appended as Annexure 3 to the writ petition. In support of his submission, he has placed reliance on Clause 1 of the Cost Data Book which provides that the security deposited to cover the estimated power consumption for 45 days shall be made by the consumer as per Clause 4.20(a) of the Electricity Supply Code 2005 and in case the load is reduced, the excess amount deposited by the consumer shall be refunded by the licensee. He has also placed reliance on Section 47 of Electricity Act 2003, which stipulates power to require security. In this backdrop, he submits that till

now the respondents are not refunding the excess amount of security deposited by the petitioners' company pursuant to its consumption pattern of 45 days average consumption of preceding one year as per Clause 4.20(g) read with Clause 6 to the note appended to Chapter 3 of the Cost Data Book dated 08.07.2019.

Learned counsel for the respondent fairly submits that the grievance of the petitioners would be looked into, examined and remedied by the second respondent at the earliest.

In the facts and circumstances of the case, the Court is of the opinion that no useful purpose would be served in keeping the writ petition pending consideration.

In view of the above, without expressing any opinion on the merits of the case, on consent, the writ petition is ***disposed of*** finally with a direction to the respondent no.2 to look into the grievance of the petitioners and pass appropriate order strictly in accordance with the relevant provisions expeditiously, preferably within a period of six weeks from the date of production of a copy of this order before him.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 10.2.2021

A. Pandey